Code of Ethics

Adopted April 2, 2025

Overview

PVLAD board members (members) and independent contractors (contractors) individually commit themselves in their official capacity to ethical, businesslike, and lawful conduct, including appropriate use of their authority and decorum at all times. Members and contractors agree to sign a Code of Ethics Pledge form and Conflict of Interest Form (included in policy) each year and submit both to the Records Officer by January 31st.

Board members must avoid even the appearance of impropriety to ensure and maintain public confidence in the PVLAD. Members and officers owe a fiduciary duty to the Pine Valley community and must not act in a manner that is contrary to that duty or to the interests of the PVLAD. Board members must place the interests of the PVLAD over their own personal interests with respect to the governance, policy, strategic direction and operations of the PVLAD.

Utah Code 67-16 addresses ethics and conflicts of interest. Generally, ethics prohibit the acceptance and solicitation of gifts, compensation, or loans by a member, officer or contractor. Members, officers or contractors may accept an occasional non-cash gift with a value of $50 or less. A conflict of interest may be allowed as long as full and proper disclosure is made, by writing a conflict of interest disclosure statement that is to be posted on the entity's website until the member, officer or contractor leaves office.

1. The following provisions shall serve as a guide to members and contractors with respect to the affairs of the PVLAD:

    a. Members shall not receive, accept, take or solicit, directly or indirectly, anything of economic value as a gift, gratuity, or favor from a person or entity if it could be reasonably expected that the gift, gratuity, or favor would influence the vote, action, or judgment, or be considered as part of a reward for action or inaction. Members and officers are required to submit a report to the PVLAD and the PVLAD's Internal Auditor of the actual or estimated value of any gifts or casual entertainment received as an officer that exceeds $50.00.

    b. The complete confidentiality of proprietary business information must be respected at all times. Members are prohibited from knowingly disclosing such information, or in any way using such information for personal gain or advancement, or to the detriment of the PVLAD, or to individually conduct negotiations or make contacts or inquiries on behalf of the PVLAD unless officially designated by the PVLAD.

    c. Members and officers are prohibited from acquiring or having a financial interest in any property that the PVLAD acquires, or a direct or indirect financial interest in a supplier, contractor, consultant, or other entity with which the PVLAD does business. This does not prohibit the ownership of securities in any publicly owned company except where such ownership places the officer in a position to materially influence or affect the business relationship between the PVLAD and such publicly owned company. Any other interest in or relationship with an outside organization or individual having business dealings with the PVLAD is prohibited if this interest or relationship might tend

to impair the ability of the member or officer to be independent and objective in his or her service to the PVLAD.

d. If members of the immediate family of a board member have a financial interest as specified above, such interest shall be fully disclosed to the PVLAD which shall decide if such interest should prevent the PVLAD from entering into a particular transaction, purchase, or engagement of services. The term “immediate family” is defined in section 1j.

e. When a conflict of interest exists, the board member shall publicly declare the nature of the conflict and may recuse him or herself on any official action involving the conflict.

f. Board members may not realize, seek, or acquire a personal interest in a business that does business with the PVLAD.

g. Members, officers and contractors shall complete a Conflict of Interest Disclosure Form each year before the 31st of January. This form shall be signed and witnessed. Completed forms shall be submitted to the Records Officer and made available to the public upon request.

i. The PVLAD Board Chair shall review all completed forms and consider the disclosures. The PVLAD Chair should make changes to assignments, duties, or contracts deemed appropriate to eliminate or mitigate conflicts of interest within the PVLAD.

j. Generally, no member, officer or contractor may employ, appoint, vote for, or recommend a relative or household member for employment or for an independent contractor. Further, no member, officer or contractor may directly supervise an appointee who is a relative or household member. Relative means a father, mother, husband, wife, son, daughter, sister, brother, grandfather, grandmother, aunt, uncle, nephew, niece, grandson, granddaughter, first cousin, mother-in-law, father-in-law, brother-in-law, sister-in-law, son-in-law, or daughter-in-law. (Utah Code 52-3) There are some exceptions addressed (Utah Code 52-3-1(2)(a). The most important exception is that a public officer may employ, appoint, vote for, or recommend the appointment of an employee that is a relative or household member if the Board Chair determines the appointee is the only or best person available, qualified, or eligible for the position.

k. Member, officer or contractor will not retain employment, which, as determined by PVLAD, and according to Utah Administrative Code R477-9-2:

i. Interferes with a member, officer or contractor performance
ii. Conflicts with the interests of PVLAD, Washington County or the State of Utah
iii. Gives reason for criticism or suspicion of conflicting interests or duties.

2. Political Activity

Except as otherwise provided by law:

a. A board member’s partisan political activity, political opinion, or political affiliation may not provide the basis for the member or contractor promotion, disciplinary action, demotion, or dismissal.
b. A member or contractor may not engage in political campaigning or solicit political contributions while performing official duties of the board

c. A member or contractor may not use fire department equipment while engaged in campaigning or other political activity
d. A member or contractor may not directly or indirectly coerce, command, or advise another member to pay, lend, or contribute part of their compensation, or anything else of value to a political party, committee, organization, agency, or person for political purposes.
e. A member or contractor may not attempt to make another member or contractor's service dependent on the member or contractor's support or lack of support of a political party, affiliation, opinion, committee, organization, agency, or person engaged in political activity.
f. A member or contractor who has filed a declaration of candidate may be given a leave of absence for the period between the primary election and the general election
g. Neither the filing of a declaration of candidacy nor a leave of absence under this section may be used as the basis for an adverse action, including discipline and termination, against the employee.
h. Nothing in this chapter shall be construed to:
    i. prohibit a member or contractor's voluntary contribution to a party or candidate of the member, officer or contractor's choice;
    ii. Permit a member or contractor's partisan political activity that is prohibited under federal law.

e. No member or contractor shall solicit or participate in soliciting any assessment, subscription, or contribution to any political party during working hours on the premises of any PVLAD property.
f. No member or contractor shall promise any appointment to any position with the PVLAD as a reward for any political activity.

3. Fair and Equal Treatment
    a. No person shall be appointed to, removed from, or in any way favored or discriminated against with respect to any appointive public office because of such person's race, color, age, religion, sex, national origin, or functional limitation as defined by applicable state or federal laws, if otherwise qualified for the position or office.
    b. No member or contractor shall grant any special consideration, treatment or advantage to any citizen beyond that which is available to every other citizen.